

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #11	CCRB Case #: 201808023	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 09/10/2018 9:22 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/10/2020	Precinct: 113		
Date/Time CV Reported Thu, 09/20/2018 3:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/27/2018 11:02 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sergio Gonzalez	03832	934949	113 PCT
2. POM Sean Roberts	21497	962736	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Chidichimo	29175	954638	113 PCT
2. POM Joseph Angelone	02293	963376	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sergio Gonzalez	Abuse: Sergeant Sergio Gonzalez entered the basement of § 87(2)(b) in Queens.	A . Unsubstantiated
B . POM Sean Roberts	Abuse: Police Officer Sean Roberts entered the basement of § 87(2)(b) in Queens.	B . Unsubstantiated
C . SGT Sergio Gonzalez	Abuse: Sergeant Sergio Gonzalez threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Sean Roberts	Discourtesy: Police Officer Sean Roberts acted discourteously toward § 87(2)(b)	D . Unsubstantiated
E . SGT Sergio Gonzalez	Abuse: Sergeant Sergio Gonzalez seized § 87(2)(b)'s property.	E . Exonerated

Case Summary

§ 87(2)(b) called IAB and filed the following complaint on September 20, 2018. The complaint was received at the CCRB on September 27, 2018.

On September 10, 2018, at approximately 9:22 p.m., § 87(2)(b) was bitten by § 87(2)(b)'s daughter, § 87(2)(b)'s dog at § 87(2)(b) in Queens. § 87(2)(b) called 911 to report the incident and officers and EMS responded. § 87(2)(b) was in the house's basement and § 87(2)(b) was not home. Sgt. Sergio Gonzalez and Police Officer Sean Roberts entered the basement (**Allegations A and B – Abuse of Authority: Unsubstantiated**). Sgt. Gonzalez allegedly threatened to arrest § 87(2)(b) (**Allegation C – Abuse of Authority: Unsubstantiated**). While in the basement, PO Roberts allegedly kicked the metal crate that the dog was in (**Allegation D – Discourtesy: Unsubstantiated**). Sgt. Gonzalez then called the Emergency Services Unit to remove the dog from the home (**Allegation E – Abuse of Authority: Exonerated**). There is no video footage associated with this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Sergio Gonzalez entered the basement of § 87(2)(b) in Queens.

Allegation (B) Abuse of Authority: Police Officer Sean Roberts entered the basement of § 87(2)(b) in Queens.

§ 87(2)(b) stated that she was living in her sister § 87(2)(b)'s basement along with her daughter § 87(2)(b) and a large pitbull that belongs to the latter.

On the date of the incident, § 87(2)(b) was in the kitchen on the first floor of the house with the dog, when it allegedly bit § 87(2)(b) in the leg. § 87(2)(b) believed § 87(2)(b) was not bitten by the dog and that the wounds were self-inflicted. § 87(2)(b) called 911 to request that the police and an ambulance respond. § 87(2)(b) took the dog to the basement and put it inside of a metal crate. There are two entrances to the basement. One through the first floor of the house and the other through its side. There was a knock on the door located on the side of the house and § 87(2)(b) opened the door. Sgt. Gonzalez told her that § 87(2)(b) had reported that she was bitten and this was the second time officers responded to a dog bite at this location. § 87(2)(b) did not like his tone and closed the door. Later, she heard a knock on the door leading to the first floor of the house and she went up the stairs to open. Sgt. Gonzalez stood at the doorway and told § 87(2)(b) that he was informed that she was an employee of the NYPD and asked for her employee identification card. She stated that she did not have to show it to him. § 87(2)(b) turned around and walked down the basement stairs, leaving the door open. Sgt. Gonzalez followed her into the basement and told her that the dog was going to be removed. § 87(2)(b) replied, "Okay, fine." She did not oppose to his presence in the basement because she just wanted the interaction with Sgt. Gonzalez to end. PO Roberts entered the basement to inform § 87(2)(b) that a Duty Captain was on his way to the scene.

On November 19, 2018, § 87(2)(b) provided an unverified telephone statement. She stated that she was bitten by § 87(2)(b)'s dog and officers responded to seize it. The basement was originally her laundry room and was a communal area that was not intended to be a bedroom. She allowed § 87(2)(b) to stay in the basement free of charge after the latter lost her job as a 911 operator. § 87(2)(b) eventually brought her daughter, § 87(2)(b)

§ 87(2)(b) to live there along with § 87(2)(b)'s large pitbull. Although the basement is § 87(2)(b)'s laundry room, she has been unable to go into the basement for nearly a year for fear of the dog. § 87(2)(b) did not witness Sgt. Gonzalez's interaction with § 87(2)(b) because she was being treated by EMS. She added that she did not have a complaint against the officers and did not want to be further involved in the investigation.

Sgt. Gonzalez responded to a radio run of an assault in progress at § 87(2)(b)'s home (Board Review 02). It was transmitted over division radio that a female was bitten by a dog. Sgt. Gonzalez and several other officers, including PO Roberts, saw § 87(2)(b) bleeding from one of her legs. Sgt. Gonzalez requested an ambulance and was explained by § 87(2)(b) that § 87(2)(b)'s dog bit her while roaming in the yard. She added that the dog was violent and had bitten several people in the neighborhood. She also told Sgt. Gonzalez that § 87(2)(b) was in the basement with the dog. Sgt. Gonzalez explained to § 87(2)(b) that the dog would have to be seized. Sgt. Gonzalez knocked on the basement door and § 87(2)(b) opened it. Sgt. Gonzalez explained to § 87(2)(b) that the dog had to be seized because it had bitten § 87(2)(b) and other neighbors. § 87(2)(b) stated that they could not take the dog. After arguing back and forth, eventually § 87(2)(b) gave in and said that Sgt. Gonzalez could go downstairs to see the dog. She walked down the stairs and he followed behind her along with PO Roberts without any objections, while the remaining officers tended to § 87(2)(b).

PO Roberts' statement was consistent with that of Sgt. Gonzalez with no exception noted.

§ 87(2)(g)

As such, it is therefore recommended that **Allegations A and B be closed as Unsubstantiated.**

Allegation (C) Abuse of Authority: Sergeant Sergio Gonzalez threatened to arrest

§ 87(2)(b)

It is undisputed that Sgt. Gonzalez threatened to arrest § 87(2)(b) after entering the basement. § 87(2)(g) § 87(2)(b)

§ 87(2)(b) stated that when Sgt. Gonzalez was informed of § 87(2)(b) employment, he asked for § 87(2)(b) identification card. § 87(2)(b) refused to provide the identification as she walked down the stairs. Sgt. Gonzalez then stated, "I'll lock you up" in reference to § 87(2)(b) refusing to provide § 87(2)(b) identification.

Sgt. Gonzalez stated that he asked § 87(2)(b) about § 87(2)(b) employment and requested to see her NYPD identification card but did not threaten to arrest her if she did not provide it. He asked for the card because if she was employed by the § 87(2)(b) he would have to request a duty captain to respond to the scene. Sgt. Gonzalez noted in his memo book (Board Review 03) that he made a phone call to Metrotech and spoke to Principal § 87(2)(b) § 87(2)(b)

Sgt. Gonzalez stated that the only time that he threatened to arrest § 87(2)(b) occurred

when she refused to let officers seize the dog. Sgt. Gonzalez told § 87(2)(b) that if she did not allow the officers to take the dog, she could be arrested for obstruction of governmental administration.

PO Roberts stated that Sgt. Gonzalez did not threaten to arrest § 87(2)(b)

§ 87(2)(g)

. It is recommended that **Allegation C be closed as Unsubstantiated.**

Allegation (D) Discourtesy: Police Officer Sean Roberts acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) alleged that while Sgt. Gonzalez and PO Roberts were in the basement, PO Roberts kicked the front of the dog cage a few times and believed that he was trying to further agitate the dog. PO Roberts told her that he was trying to make sure the latch on the cage was sturdy so the dog could not escape.

PO Roberts stated that upon entering the basement, he saw that the dog was inside of a cage with two latches. The bottom latch of the case was open and was evident by the fact that the dog was pushing the cage door out and could almost stick its head out of the opening. PO Roberts was afraid of the dog and did not want to close the latch himself, so he placed his foot against the bottom of the cage door to hold it closed while he asked § 87(2)(b) to close the latch.

§ 87(2)(b) refused to close the latch, causing PO Roberts to hold his foot against the cage door for approximately 10 minutes. During this time, § 87(2)(b) accused PO Roberts of kicking the dog. PO Roberts denied kicking the cage or the dog and did not move his foot from the door until § 87(2)(b) eventually closed the latch.

Sgt. Gonzalez did not recall if the dog cage had any issues or defects and did not recall seeing PO Roberts touch the dog cage.

§ 87(2)(g)

. It is therefore recommended that **Allegation D be closed as Unsubstantiated.**

Allegation (E) Abuse of Authority: Sergeant Sergio Gonzalez seized § 87(2)(b) s property.

§ 87(2)(b) stated that Sgt. Gonzalez called the Emergency Services Unit (ESU), who then arrived and explained the dog removal procedure to her. Unidentified ESU officers asked § 87(2)(b) to walk the dog out to their vehicle and they removed the dog to the American Society for the Prevention of Cruelty to Animals (ASPCA). § 87(2)(b) did not object to ESU taking the dog although the dog belonged to her daughter, § 87(2)(b)

On November 16, 2018, § 87(2)(b) provided an unverified telephone statement. She stated that she learned at an unknown later time that her dog was removed by ESU and was eventually taken by an organization named “§ 87(2)(b)” which specializes in obedience training for aggressive dogs. § 87(2)(b) was not present for this incident and did not cooperate with the investigation.

New York City Police Department Patrol Guide Procedure 214-33 defines a dangerous dog as the following: “... any which bites, inflicts injury, assaults or otherwise attacks a human being or domestic animal, without provocation on public or private property.” It further states that the procedure for a call for dangerous dog or animal, regardless of whether a person is injured, is to request a unit from Animal Care and Control of New York to respond to the location. If

Animal Care and Control cannot respond to the scene then Emergency Services should be requested. Emergency Services are then tasked with securing the animal for transportation to a facility (Board Review 04).

§ 87(2)(g)

It is therefore recommended that **Allegation E be closed as Exonerated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 05).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 06).
- Sgt. Gonzalez has been a member of service for 14 years and has been a subject in two previous CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Roberts has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 15, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 07).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date